

Jonathan A. C. Brown. *Slavery and Islam*. London: Oneworld Academic, 2019, 448 pp.

Questions concerning the morality of slavery under the *Sharī'a* are among the most important questions facing scholars of Islamic ethics today. This is a new development. For much of Islamic intellectual history, the moral status of slavery has not been an issue of great moment. ISIS's and Boko Haram's recent revival of medieval *de jure* enslavement practices involving the brutal treatment of war captives by Muslim combatants, and commercial trading in such persons, using *Sharī'a*-based justifications, put an end to this lacuna. Against this background, Jonathan A. C. Brown's *Slavery and Islam* seeks to forthrightly address the heretofore unresolved philosophical, legal, and theological issues presented by the *Sharī'a*'s allowance of slavery.

It is a tall order. The issues are vexing and difficult, especially in the anti-slavery milieu of modern times. While the book has some shortcomings, it succeeds admirably in deeply and thoroughly informing the reader on the history of slavery in Islam and in shedding light on the contemporary parameters of what Brown calls "The Slavery Conundrum." The book specifically tackles the challenge presented by the fact that human discourse, across all religions and across all legal and philosophical traditions, has only recently come to condemn slavery. Brown asks what this means for those who wish to make contemporary moral and ethical judgments about slavery in Islam. He argues that the problem of slavery for Muslims is comparable to the problems now faced by Americans in dealing with the veneration of the confederacy and the privileging of the memory of pro-slavery figures in American history. No matter what one thinks about this comparison, the book will be a must-read for students and scholars of slavery in historical and contemporary Islam, as well as for anyone interested in slavery and its relationship to religion.

The book is divided into seven chapters, preceded by an introduction and followed by a select but comprehensive bibliography. Brown also attaches six appendices, each touching on a special historical or philosophical problem involving slavery in Islam. Every chapter is subdivided, using informative and sometimes provocative subheadings. The introduction sets the stage, asking, *inter alia*, whether it is appropriate to venerate people and texts that in the past found slavery "valid and normal," whether changing technologies and advances in world economic systems have contributed to modern condemnations of slavery, and what role "anti-Black sentiments in Islamic civilization" may have played in the history of slavery and slave trading in the Muslim realms. Brown is concerned that the book might read like an apology for the *Sharī'a*'s allowance of slavery and he is right to have this concern. As we shall see, there are

sections of the book that unabashedly seek to explain away and perhaps excuse the ubiquitous role that slavery and slave trading have played in Islamic political, economic and legal history. Brown attempts to answer his unease in the introduction, stating: “[a]s I make clear in this book, I believe slavery is wrong. What interests me here is how almost all moral authorities in human history thought it was right, and what this means for our view of history, moral philosophy and theology” (9). His agenda is therefore considerably larger than the narrow focus on slavery and Islam suggested by the title.

Chapter 1 begins the inquiry with a robust discussion of the difficulties in defining slavery, arguing that the modern definition, like modern definitions of terrorism, is political and a construct of liberal Western scholarship and a transatlantic point of view. He asserts that the Islamic concept, described using the Arabic word *riqq*, is much more varied and complex, sometimes blurring or avoiding the concepts of ownership and domination—traditional markers of chattel slavery. Chapter 2 focuses its attention on the *riqq*¹ concept in the *Shariʿa*, situating it in the discursive traditions of the Qurʾān and Sunna, and emphasizing reforms in the practice of slavery that the *Shariʿa* brought to the Middle East, Africa, Eurasia, and the Indian Ocean world. Brown relies on his extensive knowledge of the *ḥadīth* corpus in making these points and he underscores what he identifies as Islam’s unique ethical approach toward slavery, one which repeatedly and, in his words, “obsessively” emphasizes the merit of emancipation. Chapter 2 closes by asking “What was the reality?” and Chapter 3 takes up this question, pointing out that the reality across the *Dār al-Islām* (which Brown maintains still exists) was often much different from what the law and ethics mandated or encouraged. He acknowledges that Muslim slavers “truly ‘consumed’ masses of human beings” and that blackness became a major factor in determining who was enslaved and how they were enslaved, with anti-Black racism often driving the decision-making. He establishes that the practice tracked “classic slavery zones” around the Muslim world; he provides a well-written taxonomy of “Islamic” slavery and slave trading and acknowledges the cruelty and depravity of the slave trade conducted by Muslims in many places and across time. The next chapter, entitled

1 Although the word *riqq* means “slavery” in the Arabic language, the word does not appear in the Qurʾān. Slaves are instead described in three other predominant ways in the Qurʾān. It uses the word *ʿabd* (literally meaning ‘slave’ or ‘servant’ or ‘worshipper’), as well as two idiomatic expressions, *mā malakat aymanukum* (literally ‘those whom your right hands possess’) and *raqaba* (literally ‘neck’) to describe those who are enslaved, with the “right hands possess” expression used most frequently. In all the instances where the Qurʾān uses the word *raqaba*, it enjoins emancipation. The word *riqq* appears to be related to the word *raqaba*, describing those who are yoked or bound “by the neck” (see Freamon, 2019:124–144).

“The Slavery Conundrum,” is the heart of the book. It heroically seeks “to affirm a triad of axioms that cannot be held coherently at the same time.” Axiom 1 asserts that slavery is an intrinsic and gross moral evil. Axiom 2 asserts that “slavery is slavery” and no amount of sophistry and elision can change this fact. Axiom 3 asserts that our past has moral authority over us and, because of this, it cannot be ignored or declared to be anachronistic. Brown argues that slavery has not always been the binary opposite of freedom and that cultural traditions profoundly obscured our understandings of the concept. He asserts that Islam’s approach to the topic illustrates this point, given the great variety of circumstances Muslims employed in enslaving others. He concedes that the *Sharīʿa* did not see *riqq* as an intrinsic grave moral wrong but instead viewed the condition as a form of misfortune that might happen to anyone, or a condition imposed on people because of unbelief, or as a convenient and ancient way to extract labor and services, or perhaps a combination of all three. He identifies two causes for abolitionism: (1) an anti-slavery “moral awakening” among all human beings, including Muslims, coupled with the Enlightenment-based assertion that there must be moral progress in history, and (2) a change in the economic structure and organization of society, leading to a worldwide pragmatic condemnation of slavery—primarily because it is bad policy. He pessimistically concludes that these explanations are not helpful in solving the conundrum for Muslims, given their fidelity to their religious texts. The rest of the book is, to some extent, an effort to solve the conundrum. Chapter 5 traces the history of Islamic thought on abolition, distinguishing Islam’s emphasis on emancipation from true abolitionist initiatives and noting that many Islamic scholars over the centuries have articulated a generalized anxiety and unease with slavery, without definitively asserting the moral objection. The chapter spends some time on the anti-slavery arguments of prominent Islamic scholars in the modern era, particularly Rashīd Riḍā (d. 1935) and Fazlur Rahman (d. 1988). This chapter is especially important because it contains new and impressive research on the arguments of Muḥammad Bayram al-Khāmīs (d. 1889), a 19th century Tunisian scholar who also sought ways to provide Islamic justifications for abolition. Chapter 6 evaluates the current discourse on abolition and the impact of ISIS’ effort to revive slavery and slave trading among Muslims. After providing a thumbnail history of recent abolitionist efforts, Brown thoughtfully appraises the two main contemporary Islamic arguments supporting abolition: (1) a public interest argument, based on the model of moral progress in history, and (2) abolition based on the existence of a scholarly consensus or *ijmāʿ*, recognizing that this argument was first advanced by the undersigned in a 1998 article (Freamon, 1998:1–64). He rejects both arguments, noting that neither was effective in countering ISIS’ revivalist

discourse. He asserts that the public interest argument is only a temporary fix and he is skeptical about the sincerity of claims of *ijmāʿ*. Brown then offers his own opinion on the issue, asserting that the early history of Islam created “veritable turbines of emancipation” (263), with emancipation being an “obsession” of the early Muslims. He argues that it is this “obsession,” if revived, that could lead to the permanent elimination of slavery. He closes the chapter with the observation that Islamic civilization was, like other great civilizations, slow to abolish slavery (implying that it is in fact abolished) and that Islamic thought and politics contained an important assimilationist element that sometimes served enslaved populations well. The last chapter is somewhat of an afterthought, taking on the historical legacy of concubinage. Brown is again adamant in reiterating that slavery was not always a “gross, intrinsic moral evil at all points in history.” (269) He suggests that moral disgust at slavery today is instead the result of changes in our views of right and wrong resulting from changes in custom and, because of this, ending slavery is now a sincere moral priority for Muslims just at it is for others. He ties this assertion to a discussion of the issue of consent in historically evaluating the behavior of owners of concubines, arguing that the modern view that consent in sexual relations is a necessity, and the related view that the primacy of a woman’s autonomy (and equality) is well-nigh indisputable, are both additional reasons for concluding that concubinage is a dead letter in Islamic relationships and why it should now be a dead letter in Islamic law and ethics as well.

Slavery and Islam is a thoughtful, well-researched, and well-written elucidation of a very difficult problem. Brown’s knowledge of the *ḥadīth* corpus on slavery serves him well and his treatment of the subject is greatly enhanced by his superb research on the 19th century *ʿulamāʾ*ic discourse. There are a few matters raised in the book that might give readers some pause. Brown translates the Qur’ānic phrase *mā malakat aymānukum* as meaning “those whom you possess rightfully.” This translation is not consistent with the great majority of the renderings of the phrase (and its literal meaning) and it may subtly distort the Qur’ānic message on slavery. Secondly, Brown asserts that “... becoming a concubine was not necessarily a bad development for a female slave” (132–133). Although he accurately describes the conditions female slaves endured in Islamic history, it may be difficult to support his general statement suggesting that elite slavery was always good for women. This is a species of the “happy slave” argument, reminiscent of Aristotelian justifications for the practice. Lastly, he concludes that British abolitionists ended the slave trade in the Indian Ocean in the decades after 1830 and ended slavery in India in 1843. These assertions are not accurate, as recently scholarship has made clear. The “Islamic” slave trade in the Indian Ocean world continued well into the

twentieth century and there is a strong argument that slavery, in its modern manifestations, remains alive and well in the Muslim world today.

Bernard K. Freamon

Seton Hall University, South Orange, NJ, USA

bernard.freamon@shu.edu

Bibliography

- Freamon, Bernard K. 2019. *Possessed by the Right Hand: The Problem of Slavery in Islamic Law and Muslim Cultures*. Leiden: Brill.
- Freamon, Bernard K. 1998. "Slavery, Freedom, and the Doctrine of Consensus in Islamic Jurisprudence," *Harvard Human Rights Journal* 11 (Spring 1998): 1–64.
- Harms, Robert W., Bernard K. Freamon, and David W. Blight, eds. 2013. *Indian Ocean Slavery in the Age of Abolition*. New Haven: Yale University Press.
- Hopper, Matthew S. 2015. *Slaves of One Master: Globalization and Slavery in Arabia in the Age of Empire*. New Haven: Yale University Press.
- Major, Andrea. 2012. *Slavery, Abolitionism and Empire in India*. Liverpool: Liverpool University Press.